

26STCV20393 26STCV20393

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCV20393 Hearing Date: July 30, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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LLOYD JOSEPH COLLINS, et al.

Plaintiff(s),

vs.

ADAM

BERGER, et al.,

Defendant(s).

Case No.:

26STCV20393

Hearing Date:

July 30, 2026

[TENTATIVE]

ORDER RE: ORDER TO SHOW CAUSE RE: PRELIMINARY INJUNCTION

Lloyd Joseph Collins ("Collins") and Repossession Empire, Inc. ("REI") (collectively, "Plaintiff"[1]) seek a preliminary injunction restraining defendants Adam Berger ("Berger"), Ars Collision ("Ars"), and Southern California Automotive Group, LLC ("SCAG") (collectively, "Defendants") from selling or otherwise disposing of a 2021 Chevrolet 2500HD Silverado Work Tow Truck, VIN 1GB5YLE72MF208278 ("Vehicle").

The unopposed preliminary injunction is granted.

I.

Background

1.

Factual Background

REI owns the Vehicle, a tow truck which it uses in its repossession business. (Collins Decl., ¶¶ 3-4.)

On or about December 18, 2025, Plaintiff delivered the Vehicle to Defendants for collision repairs. (Collins Decl., ¶ 5.)

On or about February 12, 2026, Defendants prepared a written repair estimate of \$10,825.34. (Collins Decl., ¶ 6, Ex. 1.) The next day, Plaintiff paid Defendants a \$5,000 deposit, toward the repair costs. (Collins Decl., ¶ 7, Ex. 2.)

By early March 2026, Defendants had not repaired the Vehicle. (Collins Decl., ¶ 8.) At that point Defendants had only disassembled portions of the Vehicle, including removing the rear axle and fuel tank, in preparation for repairs. (Collins Decl., ¶ 8.)

On or about March 18, 2026, Collins visited Defendants' facility and confirmed no repair work had been completed on the Vehicle. (Collins Decl., ¶ 9.) Defendants claimed they had ordered parts, but Defendants did not produce proof. (Collins Decl., ¶ 10.) Plaintiff told Defendants he did not authorize any further work and demanded return of the Vehicle. (Collins Decl., ¶ 11.) Defendants at that time agreed they would reassemble the Vehicle and allow Plaintiff to retrieve it. (Collins Decl., ¶ 12.)

Still on March 18, 2026, Plaintiff sent Berger an email confirming Defendants agreed to reassemble the Vehicle within one week for Plaintiff to recover. (Collins Decl., ¶ 13, Ex. 3.) Berger responded demanding payment for labor, reassembly, parts, storage, and other charges before he would release the Vehicle and provided a new repair estimate of \$22,410.73. (Collins Decl., ¶ 14, Ex. 4.) Plaintiff did not authorize repair under the new estimate or charges for parts not yet obtained. (Collins Decl., ¶ 15.)

Defendants have prevented Plaintiff from inspecting the Vehicle, but have acknowledged no work has been done. (Collins Decl., ¶ 16, Ex. 5.) Defendants have not returned the Vehicle. (Collins Decl., ¶ 17.)

On or about June 15, 2026, Defendants offered to release the Vehicle for \$25,000. (Collins Decl., ¶ 19.)

Defendants initiated a mechanic's lien sale, noticing that the Vehicle would be sold July 1, 2026. (Collins Decl., ¶ 20, Ex. 6.)

Due to an error with Plaintiff's commercial mailbox service, Plaintiff did not receive the notice of the sale until June 25, 2026, though it was delivered June 18, 2026. (Collins Decl., ¶ 22.)

2.

Procedural History

Plaintiff filed his complaint on June 29, 2026. A proof of service filed June 30, 2026 shows Plaintiff served Berger with the summons and complaint by electronic service on June 29, 2026. Another proof of service filed June 30, 2026, shows Plaintiff served the summons and complaint on Berger on behalf of SCAG, but does not specify the date or method of service. A proof of service filed July 10, 2026 shows Plaintiff served Berger with the summons and complaint by personal service, also on June 29, 2026.

On June 30, 2026, the Court denied Plaintiff's ex parte application for a temporary restraining order ("TRO") for failure to give timely and proper notice, and because the relief sought was on behalf of REI, and Collins appeared without council on behalf of REI. On July 8, 2026, the Court granted Plaintiff's ex parte application for a TRO and order to show cause ("OSC") re: preliminary injunction. Counsel for Defendants appeared

at the July 8, 2026 hearing. The Court ordered Plaintiff to personally serve Defendants with the TRO, OSC, summons and complaint, and all moving and supplemental papers no later than July 13, 2026. Any opposition was due no later than July 27.

On July 20, 2026, Plaintiff filed a notice and acknowledgment of receipt of the TRO and OSC.

Aside from the above-mentioned notice of acknowledgment and receipt, no papers have been filed by any party in this action since the Court granted the TRO and OSC.

II.

Discussion

In determining whether to issue a preliminary injunction, the trial court considers two factors: (1) the reasonable probability that the plaintiff will prevail on the merits at trial (Code Civ. Proc. [“CCP”] §526(a)(1)), and (2) a balancing of the “irreparable harm” that the plaintiff is likely to sustain if the injunction is denied as compared to the harm that the defendant is likely to suffer if the court grants a preliminary injunction. (CCP §526(a)(2); 14859 Moorpark Homeowner's Assn. v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1402; Pillsbury, Madison & Sutro v. Schectman (1997) 55 Cal.App.4th 1279, 1283; Davenport v. Blue Cross of California (1997) 52 Cal.App.4th 435, 446; Abrams v. St. John's Hospital (1994) 25 Cal.App.4th 628, 636.) Thus, a preliminary injunction may not issue without some showing of potential entitlement to such relief. (Doe v. Wilson (1997) 57 Cal.App.4th 296, 304.)

The purpose of a preliminary injunction is to preserve the status quo pending final resolution upon a trial. (See Scaringe v. J.C.C. Enterprises, Inc. (1988) 205 Cal.App.3d 1536; Grothe v. Cortlandt Corp. (1992) 11 Cal.App.4th 1313, 1316; Major v. Miraverde Homeowners Assn. (1992) 7 Cal.App.4th 618, 623.) The status quo has been defined to mean the last actual peaceable, uncontested status which preceded the pending controversy. (Voorhies v. Greene (1983) 139 Cal.App.3d 989, 995, quoting United Railroads v. Superior Court (1916) 172 Cal. 80, 87; 14859 Moorpark Homeowner's Assn. v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1402.)

Probability of Success

“The trial court’s determination must be guided by a ‘mix’ of the potential-merit and interim-harm factors; the greater the plaintiff’s showing on one, the less must be shown on the other to support an injunction.” (Butt v. State of California (1992) 4 Cal.4th 668, 678.) However, “[a] trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim. (Ibid.)

Plaintiff seeks, among other things, a declaration of the parties’ rights and interests in the Vehicle, on the basis that he believes Defendants have no or limited right in the Vehicle, conversion for withholding the Vehicle, and breach of contract for failure to perform repairs and failure to return the Vehicle. (FAC, ¶ 39-40.)

Plaintiff has presented evidence to show that, on December 18, 2025, he delivered the Vehicle to Defendants to conduct necessary repairs. (Collins Decl., ¶ 5.) Defendants did not produce an estimate for repairs until February 12, 2026, and had not begun repairs by March 18, 2026. (Collins Decl., ¶¶ 6-9.) Defendants nonetheless refused to return the Vehicle, demanding payment of more than double the original estimate despite having done no repair work. (Collins Decl., ¶¶ 17-19.)

Defendants have appeared but not opposed. Accordingly, the Court finds Plaintiff has shown a probability of success on his claims.

2.

Balance of Harms

The Court must balance the irreparable harm that Plaintiff is likely to sustain if the injunction is denied as compared to the harm that Defendants are likely to suffer if the court grants a preliminary injunction. (CCP §526(a)(2); 14859 Moorpark Homeowner’s Assn. v. VRT Corp., supra, 63 Cal.App.4th at 1402; Pillsbury, Madison & Sutro v. Schectman, supra, 55 Cal.App.4th at 1283.)

If no injunction issues, Plaintiff will lose the Vehicle. If an injunction issues, Defendants will suffer harm only as a delay of sale.

Based on the foregoing, the Court finds that the balance of harms favors Plaintiff.

3.

Bond

In setting the bond, the court must assume that the preliminary injunction was wrongly issued. (*Abba Rubber Co. v. Seaquist* (1991) 235 Cal.App.3d 1, 15.) The attorney fees necessary to successfully procure a final decision dissolving the injunction also are damages that should be included in setting the bond. (*Id.* at 15-16.) While *Abba* reasoned that the plaintiff's likelihood of prevailing is irrelevant to setting the bond, a more recent case disagreed, stating that the greater the likelihood of the plaintiff prevailing, the less likely the preliminary injunction will have been wrongly issued, and that is a relevant factor for setting the bond. (*Oiye v. Fox* (2012) 211 Cal.App.4th 1036, 1062.)

The parties have not addressed the issue of bond. The Court will discuss the matter with counsel at hearing.

III.

Conclusion

Plaintiff has shown a probability of success on the merits, and the balance of harms favors Plaintiff. The preliminary injunction is GRANTED.

Pending final resolution of this matter, Defendants, and all persons acting in concert with them, are restrained and enjoined from:

(1) conducting, participating in, completing, or relying upon any mechanic's lien sale, auction, private sale, title transfer, registration transfer, assignment, encumbrance, or other disposition of the Vehicle;

(2) transferring, assigning, selling, delivering possession of, moving (except as reasonably necessary for safety), dismantling, altering, damaging, concealing, or otherwise impairing the Vehicle, or any equipment or property located in or attached to it; and

(3) submitting,
completing, processing, relying upon, or causing to be submitted any paperwork,
form, or documentation intended to effectuate or support transfer of ownership,
title, registration, or possession of the Vehicle.

Defendants shall preserve the Vehicle
and all property located in or attached to it in its present condition pending
further order of this Court.

Date: July 30, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if
they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email
to the court at with the Subject line
"SUBMIT" followed by the case number. The body of the email must include the
hearing date and time, counsel's contact information, and the identity of the
party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should
arrange to appear remotely (encouraged) or in person for oral argument. You
should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter
off calendar or adopt the tentative ruling as the order of the court. After the
court has issued a tentative ruling, the court may prohibit the withdrawal of
the matter without leave.

[1]

Collins is Chief Executive Officer and sole shareholder of REI. (Collins Decl.,
¶ 2.)